

NOTE: A SEPARATE PETITION MUST BE FILED FOR EACH CRIMINAL CASE AND THE CHARGE(S) MUST BE LISTED IN THIS MOTION FOR THE CHARGE(S) TO BE EXPUNGED.

AOC-497.2 Doc. Code: PEXA
Rev. 7-20
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Commonwealth of Kentucky
Court of Justice www.kycourts.gov
KRS 431.076



PETITION FOR EXPUNGEMENT
(FOR ACQUITTAL, DISMISSAL, OR FAILURE TO INDICT)

Case No. 19-M-000001

Court District

County Fayette

Division Criminal

COMMONWEALTH OF KENTUCKY

PLAINTIFF

VS.

María-Alejandra O'Shaughnessy

NAME

DEFENDANT

1188 Upper Coastal Crossing Road, Apt 14B

ADDRESS

Lexington, KY 40507-2214

(859)

PHONE NUMBER

Jail ID Number _____ (optional)

Defendant's Birthdate: 02/17/1988

Defendant's SSN: _____

Violation/Arrest Date: 01/10/2019

Comes now the Defendant herein and petitions the Court, pursuant to KRS 431.076, to expunge the following charges which were either acquitted, dismissed, or did not result in indictment in the above-referenced case:

CHARGE: Ct 1: Criminal trespass, second degree

CHARGE: Ct 2: Disorderly conduct, second degree

CHARGE: Ct 3: Harassment

CHARGE: Ct 4: Menacing

CHARGE: Ct 5: Criminal mischief, third degree

CHARGE: Counts 6 onward: see attached schedule

In support of this Petition, the Defendant states as follows: *(check all that apply)*

- ☒ At least sixty (60) days prior to filing this Petition, the Defendant was **acquitted** of the above-listed charge(s) and the charge(s) was/were not expunged pursuant to KRS 431.076(1)(a);
- ☒ At least sixty (60) days prior to filing this Petition, the above-listed charge(s) was/were **dismissed with prejudice** and said dismissal was NOT in exchange for a guilty plea to another offense and the charge(s) was/were not expunged pursuant to KRS 431.076(1)(a);
- ☐ For felony charges, at least three (3) years prior to the filing of this Petition, the above-listed charge(s) was/were **dismissed without prejudice** and said dismissal was NOT in exchange for a guilty plea to another offense;
- ☒ For misdemeanor charges, at least one (1) year prior to the filing of this Petition, the above-listed charge(s) was/were **dismissed without prejudice** and said dismissal was NOT in exchange for a guilty plea to another offense; AND
- ☐ The above-listed felony charge(s) originally filed in District Court has/have not resulted in an indictment by the grand jury or in an information filed by the Commonwealth's Attorney, and six (6) months have elapsed since the date of the District Court decision to hold the matter to the grand jury.

The Defendant prays that this Petition for Expungement for Acquittal, Dismissal, or Failure to Indict be granted and that this Court enter an Order that the following agencies expunge any records in the agencies' custody regarding these charges:

LIST AGENCIES AND ADDRESSES HERE: (Records may be held at multiple agencies. Please identify any government agency that may have a record of your charge(s) such as, but not limited to, jail facilities or arresting agencies.)

See attached charge and agency schedule.

Note: Defendant/Petitioner must sign this petition **in the presence of** a notary **or** the circuit court clerk so that the clerk can witness his/her signature.

_____, 2_____
Date

Defendant/Petitioner Signature

Subscribed and sworn to before me by _____ this _____ day of _____, 2_____.

My Commission Expires: _____

Notary/Clerk

By: _____, D.C.

NOTICE TO COMMONWEALTH/COUNTY ATTORNEY

If this Petition is brought under KRS 431.076(1)(c) a response may be filed within ninety (90) days after the filing of the Petition. If a response is not filed, the charges will be dismissed without prejudice and an order shall be entered expunging the records. If a response is filed, the Court shall dismiss the charges without prejudice ninety (90) days after the filing of the response.

For Clerk Use Only

This Petition for Expungement was sent on the _____ day of _____, _____, to Defendant/Petitioner or his/her Attorney; the County or Commonwealth's Attorney, as appropriate.

Clerk

By: _____ D.C.

Charge and agency schedule

Case 19-M-000001 | María-Alejandra O'Shaughnessy

Attachment to the petition in the identified criminal case. It also identifies the charges and agencies in the tendered AOC-497 when that optional component is included. No judicial finding or completed expungement is stated here.

Count 1: Criminal trespass, second degree. Classification: misdemeanor. Acquittal. Disposition order date: 04/02/2019.

Count 2: Disorderly conduct, second degree. Classification: misdemeanor. Dismissal with prejudice. Disposition order date: 04/03/2019.

Count 3: Harassment. Classification: misdemeanor. Misdemeanor dismissal without prejudice. Disposition order date: 04/02/2019.

Count 4: Menacing. Classification: misdemeanor. Acquittal. Disposition order date: 04/03/2019.

Count 5: Criminal mischief, third degree. Classification: misdemeanor. Dismissal with prejudice. Disposition order date: 04/02/2019.

Count 6: Resisting arrest. Classification: misdemeanor. Misdemeanor dismissal without prejudice. Disposition order date: 04/03/2019.

Count 7: Criminal trespass, first degree. Classification: misdemeanor. Dismissal with prejudice. Disposition order date: 04/02/2019.

Agencies and mailing addresses (identify all custodians, including any arresting agency and jail):

1. Kentucky State Police; 1266 Louisville Road, Frankfort, KY 40601; role: arresting agency.

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KRS 431.076



EXPUNGEMENT ORDER
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(859) PHONE NUMBER

Jail ID Number _____ (optional)

Defendant's Birthdate: 02/17/1988

Defendant's SSN: _____

Violation/Arrest Date: 01/10/2019

FINDINGS OF FACT

The Court, having reviewed Defendant's **Petition to Expunge** and being sufficiently advised, **FINDS:**

1. *(Check all that apply)*

- ☐ At least sixty (60) days before the filing of this Petition, Defendant was **acquitted** of the charge(s) listed below. Said acquittal was not expunged pursuant to KRS 431.076(1)(a);
- ☐ At least sixty (60) days before the filing of this Petition, the charge(s) listed below was/were **dismissed with prejudice**. Said dismissal was **NOT in exchange for a guilty plea** to another offense and was not expunged pursuant to KRS 431.076(1)(a);
- ☐ At least three (3) years prior to the filing of this Petition, the felony charge(s) listed below was/were **dismissed without prejudice**. Said dismissal was **NOT in exchange for a guilty plea** to another offense;
- ☐ At least one (1) year prior to the filing of this Petition, the misdemeanor charge(s) listed below was/were **dismissed without prejudice**. Said dismissal was **NOT in exchange for a guilty plea** to another offense; AND
- ☐ The charge(s) listed below include felony charge(s) originally filed in District Court that did not result in an indictment by the grand jury or in an information filed by the Commonwealth's attorney. Six (6) months have elapsed since the date of the District Court decision to hold the matter to the grand jury.

CHARGE: Ct 1: Criminal trespass, second degree

CHARGE: Ct 2: Disorderly conduct, second degree

CHARGE: Ct 3: Harassment

CHARGE: Ct 4: Menacing

CHARGE: Ct 5: Criminal mischief, third degree

CHARGE: Counts 6 onward: see attached schedule

2. ☐ Other:

THEREFORE, IT IS HEREBY ORDERED:

1. ☐ The Petition is **DENIED**. (Doc Code: OEXD)
2. ☐ The Petition is **GRANTED**. The Court further **ORDERS**: (Doc Code: OEXG)
 - a. Pursuant to KRS 431.076(3)(b), any felony charge(s) originating in District Court not resulting in an indictment or an information is/are hereby **DISMISSED**.
 - b. The above-listed **charge(s) is/are EXPUNGED from the court records**. Upon entry of this order, the proceedings shall be deemed never to have occurred; the Court shall reply to any inquiry that no record exists; and Defendant shall not have to disclose the fact of the record or any matter relating to it on an application for employment, credit, or other purpose.
 - c. **With the exception of any records in the custody of the Department for Community Based Services**, the Kentucky State Police and other following agencies with custody of records relating to the arrest, charge or other matters arising out of the arrest or charge, shall expunge the record, including but not limited to; arrest records, fingerprints, photographs, index references, or other documentary or electronic data, **and shall certify to the Court on this form** within sixty (60) days of the entry of this order that the required expunging action has been completed:

See attached charge and agency schedule.

_____, 2_____
Date

Judge

AGENCY CERTIFICATION

_____, an above-named agency ordered to expunge records in our custody, hereby certifies that ☐ the **agency has no records** in its custody relating to the Defendant/matter OR ☐ the **agency has completed the expungement** as directed by this Court.

Date: _____, 2_____. Agency Records Custodian: _____

Distribution: Original - Court File

Copies: Defendant/Attorney; Kentucky State Police, 1266 Louisville Road, Frankfort, KY 40601; Named Agencies

Circuit Clerk: Refer to Clerk's Manual for instructions on filing this certification.

Kentucky: review, complete and sign

SYNTHETIC QA EXAMPLE - DO NOT FILE

This packet uses the actual two-page AOC-497.2 petition, Rev. 7-20. The charge and agency schedule is a filing attachment. Keep these instruction pages; do not file them.

The optional two-page AOC-497 proposed order is included because you confirmed that the local clerk expects one. Its findings, grant/denial, date, judge signature and agency certification remain blank. It is not an entered court order.

One petition is required for each criminal case. Compare every charge, count, classification, disposition and date in the schedule to the actual case record. Different charges can support different checkboxes. Check only the predicates established by the listed charges, not all boxes merely because they are printed.

Get the acquittal/dismissal order or District Court grand-jury-hold order from the Circuit Court Clerk. For a missing indictment, check both the indictment and information status. An unresolved or ambiguous dismissal is not a dismissal with prejudice.

AOC-497.2 / phone number: The accurate value is not held. Complete it from the case record or your contact information before filing.

AOC-497.2 / Defendants SSN: Social Security number is not held. Ask the clerk how to provide it securely and whether the filing copy must be redacted. Complete the required identifier privately; do not use a made-up number.

AOC-497.2 / Participant signature/date and notary or clerk jurat: Sign and date personally before the notary or Circuit Court Clerk; the witness completes the jurat. No execution has occurred.

AOC-497 / phone number: The accurate value is not held. Complete it from the case record or your contact information before filing.

AOC-497 / ssn: Social Security number is not held. Ask the clerk how to provide it securely and whether the filing copy must be redacted. Complete the required identifier privately; do not use a made-up number.

Do not sign in advance. Take the complete petition and its charge/agency attachment to a notary or the Circuit Court Clerk and sign and date in that person's presence. The witness completes the notary/clerk block. The software has not performed a notarization or signing.

Leave the For Clerk Use Only certificate on petition page 2 blank. Leave every finding, grant/denial box, judge/date line and agency certification on any proposed order blank. Never sign or certify for another actor.

Personal identifiers may need confidential or redacted handling. Ask the clerk how to supply your SSN and whether the filing copy needs redaction before making copies or mailing. Keep accurate private records; do not put a made-up SSN on a petition.

File and follow the result

SYNTHETIC QA EXAMPLE - DO NOT FILE

Filing destination: Office of Circuit Court Clerk for Fayette County, District Court. 150 N. Limestone, First Floor, Lexington, KY 40507 Clerk telephone: 859-246-2228

For acquittal or dismissal, use the court that entered the disposition. For failure to indict, use the District Court where the felony charge was originally filed. Confirm the court, division, number of copies and mail instructions with that clerk. Do not send a petition to the AOC certification office or the county recording clerk.

Filing fee: \$0. No expungement eligibility certification and no certification payment are required for this KRS 431.076 nonconviction petition. A fee-waiver motion is unnecessary for a free filing. If asked to pay a conviction fee, identify KRS 431.076 and the Kentucky Department of Public Advocacy nonconviction guidance and ask the clerk to check the fee classification.

Keep a complete copy, file the witnessed petition with all its filing attachments, and request a filed/stamped copy or receipt. In-person filing or mailing to the proper clerk is available; confirm delivery and postage locally. Do not assume general email submission is accepted. Any copy, mailing or optional notary expense is separate from the zero filing fee.

SERVICE: the clerk sends the petition to you or your attorney and the appropriate County/Commonwealth's Attorney. Ask the clerk to confirm routing and retain the filed copy. Do not complete the clerk's service certificate yourself.

A qualifying post-July 15, 2020 acquittal or all-charge dismissal with prejudice may already have been automatically expunged after 30 days. Verify whether that occurred before making an unnecessary petition. A petition fallback under this form waits at least 60 days; the automatic 30-day point does not shorten that printed petition requirement.

Keep every notice and attend any required hearing. If the prosecutor contests the facts, an indictment/information appears, prejudice status or a plea bargain is disputed, or the court requires briefing, stop the automated self-help path and promptly obtain legal assistance. Do not ignore a hearing or response deadline.

After an order is entered, each ordered agency must certify compliance to the court within 60 days. Ask the clerk whether the certifications arrived. Check the actual court and agency records; a proposed order or filed petition is not an expungement. Keep the order and prior case records securely.

This statute does not clear Department for Community Based Services records. Appellate-record sealing, immigration consequences and disputes about what records must be cleared need individualized legal help. Contact Clean Slate Kentucky / Department of Public Advocacy using the official resources below.

Official references and case-specific timing

SYNTHETIC QA EXAMPLE - DO NOT FILE

Count 1: Acquittal. Earliest ordinary filing date from the held facts: 06/01/2019.

Count 2: Dismissal with prejudice. Earliest ordinary filing date from the held facts: 06/02/2019.

Count 3: Misdemeanor dismissal without prejudice. Earliest ordinary filing date from the held facts: 04/02/2020.

Count 4: Acquittal. Earliest ordinary filing date from the held facts: 06/02/2019.

Count 5: Dismissal with prejudice. Earliest ordinary filing date from the held facts: 06/01/2019.

Count 6: Misdemeanor dismissal without prejudice. Earliest ordinary filing date from the held facts: 04/03/2020.

Count 7: Dismissal with prejudice. Earliest ordinary filing date from the held facts: 06/01/2019.

Authority: KRS 431.076(1)-(4), (5)-(8). Official source forms: AOC-497.2 and AOC-497, Rev. 7-20. The form's five predicates are charge-specific alternatives; the adopted LegalEase decision Q-003 (August 28, 2026) requires the attached charge/disposition mapping.

<https://apps.legislature.ky.gov/law/statutes/statute.aspx?id=50191>

<https://dpa.ky.gov/kentucky-department-of-public-advocacy/findhelp/expungement/>

<https://www.kycourts.gov/AOC/Information-and-Technology/Pages/Expungement.aspx>

<https://www.kycourts.gov/Courts/County-Information/Pages/Fayette-District.aspx>

Primary sources checked September 7, 2026. The retained source bytes were acquired September 4 and hash-verified again for this build. This is form preparation and instructions, not representation or a guaranteed result.